

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday May 15, 2026
9:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-06130	Kanwaldeep Bains vs County of Merced, et al.
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Hearing: In Camera – Ruling

This Court, having reviewed the records that are the subject of the instant petition pursuant to the California Public Records Act (CPRA), examined the papers filed by the parties, and considered oral arguments, finds that the requested records are exempt from disclosure under the Act pursuant to Government Code sections 7927.700 and 7927.705. (Gov't Code §§ 7922.000, 7923.105, 7923.110, subd. (b).) The requested records are materials obtained during the course of a human resources investigation of a personnel matter within a county agency. The agency retained a law firm to conduct the investigation and prepare a report and recommendations based on the investigation results.

First, these records are subject to the limitations on disclosure under Government Code section 7927.700. These are personnel files and similar records, disclosure of which would constitute an unwarranted invasion of personal privacy. Although Petitioner asserts, and Respondent does not dispute, that she was affected party in the subject investigation, the CPRA is blind to the identity of the requesting party and evaluates disclosure requirements as they would apply to any member of the public. A citizen who otherwise may have a right to obtain particular records cannot avail themselves of the

CPRA and expect to be treated differently to a media agency or disinterested party. Rather, the procedures and limits of the CPRA apply regardless of the identity of the requestor or the intended purpose of the request.

Second, these records are exempt from disclosure under state law, as they are subject to both attorney-client privilege and the work-product doctrine. (Evid. Code § 954; Code Civ. Proc. §§ 2018.010, et seq.) An employer's prelitigation factual investigation is protected by attorney-client privilege and the work-product doctrine when that investigation is undertaken by outside counsel, retained for that purpose. (See, e.g., *City of Petaluma v. Superior Court* (2016) 248 Cal.App.4th 1023.) The Court finds that the County of Merced formed an attorney-client relationship with attorney Starkebaum. In conducting the target investigation during which all subject records were produced, Ms. Starkebaum relied upon "her legal expertise to identify the pertinent facts, synthesize the evidence, and come to a conclusion as to what actually happened." (*Ibid.* at 1035.) "The dominant purpose of [Starkebaum's] representation was to provide professional legal services" to County Counsel. (*Ibid.*)

Although the final report prepared by counsel is unquestionably privileged, the subject documents include emails, audio files of interviews, and attachments. (*Petaluma*, 248 Cal.App.4th at 1037.) This Court specifically finds that the above privileges and protections protect all of the subject records, including the audio files of interview records between Starkebaum and persons involved in the investigation, interview notes, and emails. Starkebaum's legal expertise was the reason she was retained to conduct the investigation, and unquestionably that expertise was employed in determining how to conduct interviews, which questions to ask, and what follow-up information to seek.

The petition for writ of mandate, compelling disclosure of public records is DENIED. As this Court finds the County of Merced was justified in refusing to make the subject records public, the records will be returned to the County of Merced without further disclosure of their content, together with this Court's ruling and order supporting the decision refusing disclosure.